



Procedure No.: EXP202406036 (PS/00384/2024)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 18/03/24, A.A.A. (the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity AD735 DATA MEDIA ADVERTISING, S.L. (AD735), with CIF: B87781795, (hereinafter, the complained party), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complainant states that this company continuously sends them advertising messages. They requested to unsubscribe from communications through the link that appears at the bottom of their messages, but they continue to receive more emails and have been on the Robinson list since March 2023.

Along with the complaint, the following documentation is attached:

- Dated 26/02/24, a copy of the email sent from the address DEUDAFENIX via ad735 (**EMAIL.1) to the email address **EMAIL.2 containing the following advertising message:
 - o "Eliminate the liens and get out of ASNEF: 'We cancel your debt with the Second Chance Law'..."
- Dated 14/03/24, a copy of the email sent from the address UOC via AD735 (**EMAIL.1) to the email address **EMAIL.2 containing the following advertising message:
 - o "Start your online master's now: We boost your career..."
- Dated 14/03/24, a copy of the email sent from the address Viajes El Corte Inglés via AD735 (**EMAIL.1) to the email address **EMAIL.2 with the following message:
 - o "Discover the best paradisiacal destinations..."
- Dated 16/03/24, a copy of the email sent from the address Línea Directa via AD735 (**EMAIL.1) to the email address **EMAIL.2 with the following advertising message:
 - o "Discover the best price for your insurance..."
- Dated 18/03/24, a copy of the email sent from the address Iberdrola Ofertas via AD735 (**EMAIL.1) to the email address **EMAIL.2 with the following message:
 - o "No more increases in your electricity and gas bill. This month up to 100 euros discount with your plan..."
- In all the emails, at the bottom of them, there is an option to unsubscribe:
 - o "In accordance with the provisions of the current regulations on the protection of personal data, the General Data Protection Regulation 2016/679, and Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights, we inform you that your personal data is part of an automated file for which AD735 DATA MEDIA ADVERTISING, S.L., with CIF B87781795, and address at Cl. Ibersierra, 15, bajo of 28440 Guadarrama, Madrid, is responsible. If you do not wish to continue receiving commercial communications, you can exercise your rights of deletion and opposition to the processing of your personal data by sending a postal mail to the indicated address, to the email address bajas@ad735.es, or at www.ad735.es/bajas. If you wish to exercise the rights of access, rectification, portability of your data, and limitation of its processing, please access the following link www.ad735.es/derechosRGPDAD735.pdf."

- Screenshot of the page where a form appears to request the deletion of personal data:

https://www.ad735.es/bajas/?utm_content=MPW_Iberdrola_t2o_Marzo2024

SECOND: On 18/04/24, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the complained party for analysis and to report back within one month regarding the issues raised in the complaint.

The transfer was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), through electronic notification, with access to the content of the notification occurring on 23/04/24 as recorded in the file.

THIRD: On 23/05/24, the complained entity submitted a written response in which it states, regarding

the complaint filed, the following:

- That on 02/04/24, the complainant exercised their right to deletion of personal data before AD735 by sending an email to the address

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***EMAIL.3, being deleted from the internal files on 03/04/24 and notified to the data processors on 08/04/24.

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That the complainant submitted their complaint to the AEPD on 18/03/24, before addressing AD735 and without waiting for the legal period of one month to receive a response.

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That, after receiving the deletion request, AD735 acted in accordance with the provisions of the GDPR and that there was no harm caused to the complainant.

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Regarding the circumstances that led to the incident that originated the complaint, it argues that the footer of the communications sent includes information for recipients to exercise their rights and that at no time were emails from the complainant received in the designated mailbox (bajas@ad735.es) or through the web form, and therefore the scheduled communications prior to the deletion request on 02/04/24 could have been sent after receiving the request.

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That, nevertheless, AD735 has implemented internal controls to prevent failures in the system such as periodic audits of the rights management processes and improvements in communication systems, including an update on the accessibility of privacy policies and the enabled channels.

Finally, it requests the filing of the procedure without the imposition of a sanction, considering that it complied with regulatory requirements, respected the rights of the complainant, and caused no harm. Along with the information document, the respondent attaches the following documentation:

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Dated 02/04/24, a copy of the email sent from the address ***EMAIL.2 to the email address ***EMAIL.3 with the Subject: “Alleged subscription cancellation” and with the following message: I request for the third time that you stop sending me emails.

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Dated 21/05/24, a copy of the document titled “CERTIFICATE OF PERSONAL DATA OBTAINING” addressed to the complainant informing them of the status of the personal data held by the entity. In this document, among other information, the following appears:

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II.- COPY OF THE PERSONAL DATA SUBJECT TO PROCESSING.- The personal data subject to processing by AD735 DATA MEDIA ADVERTISING are as follows: Email: ***EMAIL.2 IP Address: (...). This personal data was obtained on the following date: Date of Obtaining: 23/03/2022 19:28

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III.- ORIGIN OF THE PERSONAL DATA SUBJECT TO PROCESSING.- Your personal data that appears in the file of AD735 DATA MEDIA ADVERTISING called PREMIUM SALES has been obtained through the forms enabled on the website www.premium-sales.es, of which it is the owner. In the participation form received, it is stated that the user granted AD735 DATA MEDIA ADVERTISING free and express consent for the processing of their personal data for marketing purposes, and the transfer of their data to third parties for these purposes, by accepting the privacy policy, the terms of use, and the applicable sweepstakes rules at that time, accessible on the website...

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Dated 21/05/24, a copy of the document titled “CERTIFICATE OF DELETION OF PERSONAL DATA” addressed to the complainant informing them that their data has been deleted as of 03/04/24, in response to the cancellation request received on 02/04/24.

FOURTH: On 18/06/24, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FIFTH: On 09/09/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged violation of Article 21.1 of the LSSI, classified as minor in Article 38.4.d) of the aforementioned regulation for sending unsolicited or expressly unauthorized commercial communications. In the opening agreement, it was determined that the sanction that could correspond, taking into account the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 10,000 (ten thousand euros).

SIXTH: On 11/10/24, a written statement of allegations regarding the initiation of the file was received by this Agency, where, in summary, the following is indicated:

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It states that the complainant executed the data deletion request on 03/04/24, and one day after receiving it, the immediate blocking of the personal data was carried out in accordance with Article 32 of the LOPDGDD, ensuring its inaccessibility except for legally provided purposes.

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It alleges the violation of the principle of presumption of innocence, as the initiation of the procedure is based on a mere statement from the complainant without any rational evidence of infringement. Jurisprudence from the National Court (Judgment of 22/02/2022, rec. 26/2020) is invoked, which establishes that the burden of proof lies with the accuser and that the absence of evidence should result in an acquittal, and states that the AEPD must inadmit complaints that do not provide rational indications of infringement, in accordance with Article 65 of the LOPDGDD.

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It states that the AEPD cannot process complaints if the affected party has not previously exercised their right before the entity or has not waited for the legal period to receive a response. Circumstances that apply in the present case.

Along with the statement of allegations, the respondent presents the following documentation:

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Copy of the document labeled by the defendant as “Doc. One.- Log file with the registration data of the claimant” where it can be read, among other information, the following:

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Search: SELECT FROM.- “log_access;” WHERE.- “ip” LIKE (...);

Action date: 2022-03-23; IP(...)

Url: <http://prb.premium-sales.es/isorteosl> Action: access

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Copy of the document labeled by the defendant as “Doc. Two.- Certificates of log table and email verification issued by the data controller” where it can be read, among other information, the following:

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“Id: 365; email: ***EMAIL.2; insertion date: (...); Verified email:

<https://cp.premium-sales.es/public/profile/verify...>”

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Copy of the document labeled by the defendant as “Doc. Three.- Model of web form through which the claimant's consent was obtained.”

SEVENTH: On 26/11/24, a resolution proposal was made stating that the Director of the AEPD should proceed to sanction the entity AD735 DATA MEDIA ADVERTISING, S.L. (AD735), with CIF.:

B87781795, for the infringement of Article 21 of the LSSI, classified as minor in Article 38.4.d) of the same regulation with a sanction of 10,000 euros (ten thousand euros).

The notification of the aforementioned resolution proposal was carried out in accordance with the rules

established in the LPACAP, through electronic notification, with access to the content of the notification occurring on 26/11/24, as recorded in the file.

EIGHTH: On 18/12/24, this Agency received a written statement of allegations regarding the resolution proposal, in which the following is stated:

First.- REITERATION OF THE ALLEGATIONS ALREADY MADE.- We reiterate everything stated in our written statement of allegations to the sanction proposal issued in this procedure.

Second.- COMPLIANCE WITH DATA PROTECTION REGULATIONS.- AD735 reaffirms its rigorous compliance with the applicable legal provisions regarding data protection:

1. Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter, GDPR), particularly regarding the lawfulness, fairness, and transparency in the processing of personal data, the protection of the rights of data subjects, and the implementation of appropriate technical and organizational measures.

2. Organic Law 3/2018, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

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3. Law 34/2002, on Information Society Services and Electronic Commerce (hereinafter, LSSI), regarding the obtaining of consent for the sending of commercial communications. The documentation provided in the file, including the certification of consent and the evidence regarding the processing of personal data, proves that AD735 has operated in accordance with these regulations. AD735 has implemented all necessary measures required by the GDPR and the LOPDGDD. These measures include:

1. Obtaining valid consent: The entity has complied with the provisions of Article 4.11 of the GDPR and the guidelines 5/2020 of the European Data Protection Committee (EDPC), ensuring that the consent of the data subjects is free, specific, informed, and unambiguous. This is verified through the documentation provided and the internal practices that ensure that the data subjects have control and decision-making capacity over their data.

2. Transparent and adequate information: Clear and accessible information has been provided, in accordance with Articles 12 and 13 of the GDPR, regarding the purposes of processing, the legal basis, and the rights of the data subjects, as required by the applicable regulations.

3. Implementation of technical and organizational measures: The entity has adopted privacy policies, security protocols, and procedures for addressing the rights of data subjects (access, rectification, cancellation, opposition, among others), in compliance with the provisions of Articles 24 and 32 of the GDPR.

Third.- EVIDENCE OF CONSENT. According to the provisions of Article 7 of the GDPR, AD735 has demonstrated that the consent of the data subjects has been obtained in a clear, verifiable manner and in accordance with legal requirements.

1. Documentary evidence: A copy of the records of consents obtained through the platforms used for processing activities has been provided. These records contain the dates, the content of the informative clauses, and the mechanisms used for the data subjects to express their agreement.

2. Compliance with formal requirements: The obtaining of consent has been carried out through affirmative statements, eliminating any possibility of ambiguity or error, complying with the requirements of Article 4.11 of the GDPR and the guidelines of the EDPC.

3. Procedures for withdrawing consent: AD735 has enabled simple, free, and accessible mechanisms for data subjects to revoke their consent at any time, as required by Article 7.3 of the GDPR. AD735 has collected and recorded the claimant's consent, as required by Article 7 of the GDPR and the Guidelines 5/2020 of the European Data Protection Committee (EDPC) on consent.

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1. Valid and demonstrable obtaining of consent: The documentation provided, which includes the log of the claimant's interaction with the consent form, the records and interactions collected on the AD735 servers where it is verified that the user accessed the privacy policy, certifies that the interested party granted informed, specific, and verifiable consent.

2. Evidence presented:

- Log of the date, time, IP address, and email of the claimant, associated with the consent given on March 23, 2023.
- Copy of the registration form, log file, and records from the AD735 servers, documenting the conditions accepted by the interested party.
- Certificate of data deletion, confirming the processing of the cancellation request submitted by the claimant.

3. Cancellation procedures and attention to rights: In all commercial communications made while being responsible for the processing AD735, clear and accessible information is included so that interested parties can exercise their rights, including the immediate cancellation of such communications. The entity has demonstrated diligence in processing the cancellation request.

Fourth.- CLARIFICATION OF THE DOCUMENTATION PROVIDED.

I.- Acknowledging the technical nature of the procedures and the possible interpretations derived from the documentation presented, there may have been an insufficiency and/or deficiency in the explanation of the documents provided in this file. However, this does not imply a breach of the regulations. The claiming entity wishes to emphasize that, in compliance with the requirements of Article 7 of the GDPR and the Guidelines 5/2020 of the EDPB regarding consent, it has presented documentation that supports the legality and appropriateness of the processing of the claimant's personal data. Specifically, the following documents have been provided:

1. Document One: Log file with the registration data of the claimant. This log includes specific information about the claimant's access to the data collection form on the website managed by the entity, including:

- The IP address used by the claimant.
- The exact date and time of access.
- The specific URL where the interaction took place, reflecting the flow of the process at the time of registration.

2. Document Two: Certificates of log table and email verification issued by the data controller. This certificate confirms:

- The authenticity of the claimant's email registration.
- The moment of its verification, accompanied by the IP address and date of the verification act.
- The direct relationship between the registration and the consent for marketing activities.

3. Document Three: Model of the web form through which the claimant's consent was obtained. This model reflects the design of the form used to collect consent. It includes:

- Specific checkboxes that the

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The data subject must proactively mark to accept the receipt of commercial communications. Clear and accessible information about the purposes of the processing and the rights of the data subject. II.- According to Recital 42 of the GDPR, consent must be demonstrable, without establishing formalistic rigor or prescribed means or mechanisms, which implies that the data controller must maintain an adequate record proving that the data subject granted such consent freely, specifically, informed, and unequivocally. Furthermore, the Guidelines 5/2020 of the EDPB, in points 105 to 108, establish that:

1. Consent must be verifiable through records that allow demonstrating:

- Who granted the consent.
- When, how, and for what purpose.
- What information was provided at the time of consent.

2. The documentation provided by the data controller must include clear, precise, and complete records that allow substantiating the context in which consent was granted. In the present case, the proposed sanction indicates that the documentation submitted by AD735 does not fully comply with these requirements, arguing the insufficiency of the elements provided, especially since it is a model form without conclusive evidence that the claimant marked the corresponding boxes to grant their consent.

However, this assessment overlooks several fundamental elements that undermine such a conclusion, in addition to the fact that the submitted form is a sample form of what the claimant completed at the time of granting consent, as AD735 does not receive any image of the form but rather the log file provided, along with the recording of the claimant's data on its servers, which has been attached (Document Two).

III.- Regarding the assessment of the presented elements:

1. About Document One: The log evidences the interaction of the claimant with the data collection system, including their IP address and the exact moment of access. This log meets the requirements of the Guidelines 5/2020, as it allows linking the consent granted with a verifiable event in time and form.
2. About Document Two: The registration and verification certificates for the email guarantee that the email associated with the claimant was registered and confirmed through appropriate mechanisms. This procedure reinforces the security and reliability of the obtained data.
3. About Document Three: The model form reflects the specific design used for obtaining consent. Although the form is a generic model, it includes active acceptance boxes and a structure that complies with the transparency principles required by Article 12 of the GDPR.

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IV.- For all these reasons, we understand that the documents presented should be assessed as a set of evidence that reasonably demonstrates the claimant's consent, especially considering that:

1. Practices in accordance with applicable regulations have been followed, including the traceability and verification of data, as well as the preservation of records.
2. Proactive diligence has been adopted in the implementation of security and transparency mechanisms, ensuring the traceability of consent.
3. The possible formal insufficiency of some of the elements does not undermine the substantial compliance with legal requirements, as the absence of a specific log of the moment of marking the boxes does not eliminate the rest of the evidence provided. Therefore, we urge the instructor of the case to consider that the documentation submitted meets reasonable standards for demonstrating consent and that, should greater formalization be deemed necessary, the possibility of complementing the provided elements be offered instead of adopting disproportionate sanctioning measures.

Fifth.- GRADUATION OF THE PROPOSED SANCTION. In accordance with Article 83 of the GDPR and Article 76 of the LOPDGDD, the graduation of a possible sanction must consider not only aggravating factors but also mitigating factors such as the absence of intent, proactive diligence, and the non-existence of actual harm to the rights of the claimant. In this regard:

1. Absence of significant damage or harm: No tangible damage or harm has occurred to the claimant as a result of the entity's actions.
2. Corrective measures implemented: The entity has strengthened its consent management systems and rights attention, with periodic audits and improvements in the accessibility of mechanisms for access, deletion, and demonstration of the consents obtained.

Sixth.- PRINCIPLE OF PRESUMPTION OF INNOCENCE.- The claiming entity wishes to emphasize

the full validity of the principle of presumption of innocence in the administrative sanctioning field, including procedures related to the protection of personal data.

This principle, enshrined in Article 24.2 of the Spanish Constitution and repeatedly recognized by the Constitutional Court, constitutes a fundamental right that protects any person or entity from administrative sanctions without clear and conclusive evidence of their responsibility. In the context of administrative sanctioning, the principle of presumption of innocence implies that:

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1. Burden of proof: The burden of proving the commission of an infringement lies exclusively with the sanctioning authority. It must provide sufficient and valid evidence that conclusively demonstrates the existence of the facts constituting the infringement and the responsibility of the sanctioned entity.

2. Absence of obligation to prove one's own innocence: The alleged infringer is not obliged to demonstrate their innocence, as this burden falls on the party alleging the commission of the infringement.

3. Resolution in case of doubt: In the presence of reasonable doubts regarding the materiality of the facts or the authorship of the same, an acquittal must prevail, in accordance with this principle. These elements have been reiterated by the jurisprudence of the Constitutional Court and by the Administrative Litigation Chamber of the Supreme Court, as well as by the National Court in numerous resolutions. Within the framework of the GDPR and the LOPDGDD, the principle of presumption of innocence takes on special relevance.

The Guidelines of the EDPB and the sanctioning regime of the LOPDGDD require that any sanctioning decision be based on clear, sufficient, and verifiable evidence that leaves no reasonable doubt about the infringement.

In the present case, the arguments and evidence provided by the sanctioning authority have not conclusively demonstrated that the entity has failed to comply with the requirements for obtaining and demonstrating the consent of the claimant, as required by Article 7 of the GDPR.

In particular:

1. The evidence presented by the entity (log records, verification certificates, and form model) is compatible with data processing in accordance with the regulations and has not been duly assessed as a whole by the proposed resolution.

2. The proposed resolution is based on a strict interpretation of the formal requirements of proof, without considering the entirety of the evidence provided by the entity and without assessing the absence of specific harms.

3. The absence of clear and conclusive incriminating elements demonstrating that the entity failed to comply with the legal requirements for obtaining consent makes the principle of presumption of innocence applicable, obliging any doubts to be resolved in favor of the claiming entity.

The National Court, in its Judgment of February 22, 2022 (rec. 26/2020), emphasized that the principle of presumption of innocence requires the existence of clear incriminating evidence, and not mere statements or indications, to issue a sanctioning resolution.

In the same vein, the jurisprudence establishes that the mere insufficiency of the evidence of charge must lead to an acquittal. Likewise, the First Section of the Constitutional Court, in its Judgment 76/1990, of 25...

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of April, concludes that "any insufficiency in the results of the tests carried out must translate into an acquittal ruling," highlighting that the lack of clear and sufficient evidence in sanctioning procedures violates the fundamental right to the presumption of innocence.

By virtue of the principle of presumption of innocence, and considering that no conclusive evidence has been provided regarding the existence of an infringement by the claiming entity, this Agency is requested to archive the present sanctioning file. Subsidiarily, it is urged that, in light of reasonable doubts regarding the alleged facts, the entirety of the evidence be assessed and resolved in favor of

the entity, respecting the fundamental rights and principles applicable to the sanctioning administrative procedure.

I REQUEST THE SPANISH AGENCY FOR DATA PROTECTION to consider this document along with its attached documents as presented, to accept it, to consider the procedure conferred as duly completed, and, in virtue of the allegations made in the body of this document, to issue a resolution agreeing to revoke the proposed sanction and archive the present Sanctioning Procedure EXP202406036 (PS/00384/2024) without imposing any sanction, also expressing the absence of any liability, as the actions of AD735 DATA MEDIA ADVERTISING were in accordance with the current regulations on personal data protection, and the provisions set forth in Law 34/2002, of July 11, on information society services and electronic commerce, particularly its article 21.1, Regulation (EU) 2016/679 of April 27, 2016 (GDPR), and other applicable regulations, as well as all other legal provisions that may apply.

From the actions carried out in this procedure and the documentation in the file, the following have been established:

PROVEN FACTS

First: It is confirmed that the entity responsible for the processing of personal data linked to this procedure is AD735 DATA MEDIA ADVERTISING, S.L., with CIF: B87781795.

The mentioned entity is listed as the holder of the automated file containing the personal data of the claimant, as indicated in the commercial communications sent and in the documentation provided by it.

Second: The existence of the following emails sent to the claimant's electronic address from the email address <<... via AD735 (**EMAIL.1)>> is confirmed, dated 26/02/24, communication related to debt cancellation services and how to remove data from solvency files, dated 14/03/24, communication related to an online master's program, sent under the name of UOC, and with tourism services; dated 16/03/24, commercial communication regarding insurance, and dated 18/03/24, advertising communication about energy services.

In all the emails sent, there is included, at the footer of the messages, an informative section stating that the personal data of the recipient are contained in a file managed by AD735 DATA MEDIA ADVERTISING, S.L. This section informs about the rights of opposition and deletion, as well as the available channels for exercising these rights, including a web form and specific email addresses.

Third: The documentation provided by the responding entity along with the letter sent to this Agency dated 23/05/24 includes:

- A copy of the email sent by the claimant dated 02/04/24 where the following was explicitly requested: "... for the third time, please stop sending me emails."

- A copy of the document titled "CERTIFICATE OF DELETION OF PERSONAL DATA" addressed to the claimant informing that their data has been deleted as of 03/04/24, in response to the cancellation request received on 02/04/24.

- A copy of the document titled "CERTIFICATE OF OBTAINING PERSONAL DATA," where it can be read, among other information, the following:

- o III.- SOURCE OF THE PERSONAL DATA SUBJECT TO PROCESSING.- Your personal data appearing in the file of AD735 DATA MEDIA ADVERTISING named PREMIUM SALES have been obtained through the forms enabled on the website www.premium-sales.es, of which it is the owner. In the participation form received, it is stated that the user granted AD735 DATA MEDIA ADVERTISING free and explicit consent for the processing of their personal data for marketing purposes, and the transfer of their data to third parties for these purposes, by accepting the privacy policy, the terms of use, and the applicable sweepstakes rules at that time, accessible on the website www.premium-sales.es, and established in accordance with the legislation on personal data protection in force on March 23, 2022...

Fourth: The documentation provided by the responding entity along with the letter of allegations to the initiation of the file, sent to this Agency dated 11/10/24, includes:

- A copy of the document labeled by the responding entity as "Doc. One.- Log file with the registration data of the claimant" where it can be read, among other information, the following:

- o Search: SELECT FROM.- "log_access;" WHERE.- "ip" LIKE (...); Action date: 2022-03-23; IP: (...)
Url: <http://prb.premium-sales.esisorteosl>, Action: access

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Copy of the document labeled by the defendant as "Doc. Two.- Certificates of registration log and email verification issued by the data controller," where it can be read, among other information, the following:

o
“(...) ; email: ***EMAIL.2; insertion date: 2022-03-23 IP: (...)
Email verified: <https://cp.premium-sales.es/public/profile/verify...>”

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Copy of the document labeled by the defendant as "Doc. Three.- Model of web form through which the claimant's consent was obtained."

LEGAL GROUNDS

I
Jurisdiction.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II
Response to the allegations presented
First: In response to the allegations presented in points "one" and "two" of the written allegations, we must begin by recalling that the complaint filed is based on the repeated sending of unauthorized commercial electronic communications, in violation of the provisions of Article 21 of the LSSI. The claimant also alleged having exercised the rights indicated in the emails sent, requesting that the sending of such communications cease, without this request being attended to.
For its part, the defendant entity claims that the deletion request was received on 02/04/24 and processed the following day, 03/04/24, notifying this deletion to the data processors on 08/04/24.
Second: In points "three" and "four" of the written allegations to the proposed resolution, the defendant entity states that, in its opinion, it has provided sufficient evidence of the records of the consents obtained through its platforms, which include detailed information about the collection dates, content of the information clauses, and the mechanisms used for the expression of consent by the interested parties, attaching:

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as Document One: a document titled "Log file" with details of access to the form, including an IP address, date, and specific URL, where it can be read, among other information, the following:

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Search: SELECT FROM.- "log_access;" WHERE.- "ip" LIKE (...);
Action date: 2022-03-23; IP: (...); URL: <http://prb.premium-sales.es/isorteos/>; Action: access

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As Document Two: a "Registration Certificates" where it can be read, among other information, the following:

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Id: (...); email: ***EMAIL.2; insertion date: 2022-03-23 IP:(...);
Email verified: <https://cp.premium-sales.es/public//profile//verify...>

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As Document Three, a screenshot titled "Model of web form," with empty fields:

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LEAVE US YOUR DETAILS: From Premium Sales we will contact you via email if you win....
Email...

o

_ I have read and accept the Privacy Policy of AD735.

o

_ I agree to receive commercial communications from AD735 about services and products related to its activities reflected in the privacy policy of AD735.

o

_ I agree that AD735 may transfer the processing of my data to companies related to the sectors of activity detailed in the privacy policy of AD735. <>

However, we must reiterate that these documents are insufficient to prove that the consent to send commercial communications to the claimant was validly granted, as they do not provide any conclusive evidence since the submitted form (Document Three) is a blank model that does not certify that the claimant checked the relevant boxes at the time of accessing the website, if this event occurred. Furthermore, in Documents One and Two, there is no evidence demonstrating that the claimant provided explicit consent to receive commercial communications, nor is there evidence that the defendant has implemented adequate procedures to prevent the introduction of erroneous or fraudulent data (such as robust identity verifications or anti-fraud mechanisms, such as sending an SMS notification to the mobile phone and an unequivocal action to verify identity, as the mere recording of the IP address and the name of an email is not considered sufficient to demonstrate that the claimant expressed consent to receive commercial communications.

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At this point, let us recall, as already stated in the initiation of the file, that Directive 5/2020 of the European Data Protection Committee on consent clearly establishes that consent must be demonstrable (point 105). The data controller must maintain a sufficient log that allows proving that consent was granted clearly and expressly to receive commercial communications, and it is not enough to claim an appropriate configuration of the website (point 108). It is necessary to provide specific documentation that reflects the moment, context, and terms under which consent was obtained.

In the present case, the respondent has not presented sufficient documentation that meets these requirements, limiting itself to offering partial screenshots and generic models that do not prove that the claimant granted consent to receive commercial communications.

The subsequent deletion of the claimant's data, although it may be considered diligently managed, does not exempt the respondent from liability for the communications sent prior to that request, as it is not clarified that there was express consent for this. Consequently, the consideration that the described facts constitute a violation of Article 21.1 of the LSSI must be maintained.

For all these reasons, it must be concluded that the allegations made by the respondent lack sufficient legal and evidentiary foundation. The documentation provided does not demonstrate that the processing of the claimant's personal data was carried out under the protection of a valid legitimizing basis, nor does it prove compliance with the legal requirements for obtaining consent for the receipt of commercial communications. Consequently, these allegations cannot be taken into consideration and must be dismissed in their entirety.

Third: In the section "fifth" of its written allegations, the respondent states that, in this case, regarding the imposed sanction, actions taken by the entity to prevent such occurrences should be considered,

such as the absence of intent, proactive diligence, and the non-existence of actual harm to the claimant's rights, all in application of what is contemplated in Article 83 of the GDPR and Article 76 of the LOPDGDD.

Well, it should be noted that this sanctioning file is not based on a possible violation of data protection regulations (GDPR and LOPDGDD), but on the non-compliance with the provisions of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), applying for the graduation of the sanction the provisions of its Article 40, so it is not possible to apply, in our case, Article 83.2 of the GDPR to weigh the imposed fine, since the GDPR regulates a manifestly different objective, subjective, and territorial scope of application than the LSSI.

Apart from the above, regarding the allegations of the entity where it states that no tangible harm has occurred to the claimant as a result of the actions in question.

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of the file, it should be indicated that, in accordance with the provisions of the LSSI, the imposition of a sanction does not require the existence of actual or material harm to the affected party, but is based on the infringement of the principles and obligations established in the applicable regulations. In this sense, the repetition of the infringing conduct and its impact on the rights of the recipients of commercial communications justify the imposition of the sanction by itself, regardless of whether the harm could be quantifiable in economic or material terms.

The entity states that it has adopted corrective measures to strengthen its consent management systems and to address the rights of the data subjects, including periodic audits and improvements in the mechanisms for access, deletion, and demonstration of the consents obtained.

Although Article 40 of the LSSI establishes that certain factors may be considered in the grading of the sanction, such as adherence to codes of conduct or self-regulation systems, the subsequent adoption of corrective measures does not eliminate the entity's responsibility regarding the infringements committed. Furthermore, the recurrence of sanctioned conduct in previous files reinforces the need for a dissuasive sanction to prevent the repetition of unlawful practices.

Therefore, in consideration of all the above, the request of the entity to reduce the imposed sanction cannot be granted in this case, given the existence of two aggravating factors that condition the imposition of the maximum possible sanction.

Fourth: In point "sixth" of its written allegations, the respondent bases its defense on the principle of the presumption of innocence, stating that the initiation of the sanctioning procedure is based solely on a statement from the complainant without sufficient evidence to prove that consent was not given, and cites the ruling of the AN of February 22, 2022 (rec. 26/2020), which emphasizes the need for incriminating evidence to support any sanctioning action. It also invokes Article 24.2 of the CE, stating that the presumption of innocence is also applicable in the administrative sanctioning field and that the burden of proof lies with the accuser, not the accused.

The respondent claims to have demonstrated the lawfulness of the processing of the complainant's personal data for the sending of commercial communications and argues that, in the absence of conclusive evidence from the complainant and having provided documentation supporting its actions, the principle of the presumption of innocence should prevail, resolving the procedure in its favor.

Well, we must again recall that in the Guidelines 5/2020 of the European Data Protection Board on consent, point 107 establishes that, regarding consent for the processing of personal data, in this case for the sending of commercial communications, it is the responsibility of the sender to demonstrate that valid consent was obtained from the data subject. That is, it must demonstrate the exact procedure by which the complainant gave their consent (for example, showing that a specific box was checked on the form, in our case to consent to the sending of commercial communications, the date and time when consent was granted must be precisely recorded, and what).

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Information was provided to the interested party at the time of consent. Consequently, the log of the consent acquisition process must be presented.

The aforementioned guideline does not prescribe how consent should be demonstrated, in this case, for the sending of commercial communications, but it does require that clear and verifiable records (logs) be maintained to demonstrate that the interested party consented to this type of communication. According to point 108, the data controller must retain the records that document this.

In this case, the respondent has not demonstrated the flow (log) of the record nor has it presented documentation that proves it complied with the aforementioned requirements. The submission of a blank form is not sufficient to meet the demands set forth in the current regulations. Furthermore, in the documents presented titled “Log (log) with the access data of the complainant” (Doc. 1) and “Certificates of log table and email verification,” there is no evidence demonstrating the provision of consent for the sending of commercial communications.

Regarding the principle of presumption of innocence and the burden of proof, it should be noted that in this case, the presumption of innocence does not exempt the data controller from fulfilling the obligations established in Guideline 5/2020, as it is stated therein that it is the responsibility of the data controller to demonstrate that the requirements for obtaining valid consent for the sending of commercial communications were met, and that mechanisms were adopted to ensure that such consent was truly granted by the interested party and not by a third party.

Therefore, in this case, the principle of presumption of innocence cannot be invoked to exempt the data controller from this obligation.

Thus, the allegations presented by the respondent on this point lack foundation, as we have seen, based on the principle of proactive responsibility, the data controller must be in a position to prove its compliance, as established by Guideline 5/2020, and in this case, the respondent has not provided conclusive or verifiable evidence since the documentation presented by the respondent does not meet the requirements established in points 105-108 of the Guideline, regarding the retention of records and the demonstration of valid consent, in this case, for the sending of commercial communications.

III

Prohibition of unsolicited or expressly authorized commercial communications

The LSSI prohibits unsolicited or expressly authorized commercial communications, based on a concept of commercial communication that is qualified as a service of the information society and is defined in its Annex as: “f) any form of communication aimed at the promotion, directly or indirectly, of the image or of the goods or services of a company, organization, or person engaged in a commercial, industrial, artisanal, or professional activity.”

Regarding the authorization or consent that the user grants to the data controller of their data so that, for example, as occurs in the present case, it may send them commercial communications, Guideline 5/2020 on the

consent in the sense of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), establishes, in points 105 to 108, the following:

105. Recital 42 states that: “When the processing is carried out with the consent of the data subject, the data controller must be able to demonstrate that the data subject has given consent to the processing operation.”

106. Data controllers have the freedom to develop methods that allow them to comply with this provision adapted to their daily operations. At the same time, the obligation to demonstrate that a data controller has obtained valid consent should not in itself lead to excessive additional data processing.

This means that controllers should have sufficient data to show a link to the processing (to demonstrate that consent was obtained), but should not collect more information.

107. It is the responsibility of the controller to demonstrate that valid consent was obtained from the data subject. The GDPR does not prescribe exactly how this should be done. However, the controller must be able to demonstrate that, in a specific case, a data subject has given their consent. The obligation to demonstrate consent will exist as long as the data processing activity lasts. Once that activity has ended, proof of consent should not be retained beyond what is strictly necessary to comply with a legal obligation or for the formulation, exercise, or defense of claims, in accordance with Article 17, paragraph 3, letters b) and e).

108. For example, the controller must maintain a record of the consent statements received, so that it can demonstrate how consent was obtained and when such consent was obtained, and it must also demonstrate the information that was provided to the data subject at that time. The controller must also be able to demonstrate that the data subject was informed and that the controller's workflow met all relevant criteria for valid consent.

The underlying logic of this obligation in the GDPR is that data controllers must be accountable for obtaining valid consent from data subjects and for the consent mechanisms they have adopted. For example, in an online context, a controller could retain information about the session in which consent was expressed, such as robust identity verification or anti-fraud mechanisms, such as sending an SMS notification to the mobile phone and an unequivocal action to verify identity, along with documentation about the consent workflow when that session took place, and a copy of the information that was presented to the data subject at that time.

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It is true that it does not establish a specific mechanism on how the data controller must be able to prove that they have obtained valid consent, having the freedom to implement the method of obtaining and recording that best suits the organization's processes; however, they must at least be able to demonstrate who granted the consent, when, how, and for what purpose, as well as the information that was provided to them at the time of obtaining it. This obligation persists as long as the processing of personal data continues under the initial conditions in which the data was collected and must be verifiable in the event of an audit or inspection. Therefore, to assess whether consent is granted in a valid manner, the data controller must maintain a record (log) of the actions taken to obtain consent for the sending of commercial communications.

The documents presented by the defendant are insufficient to prove that consent to send commercial communications was granted validly, as they do not provide any conclusive evidence demonstrating that the claimant granted their consent for this type of processing. The form presented (Document Three) is a blank template that does not certify that the claimant checked the relevant boxes at the time of accessing the website, if this event occurred. Furthermore, in documents one and two, there is no evidence showing that the claimant provided their express consent to receive commercial communications, nor is there evidence that the defendant has implemented adequate procedures to prevent the introduction of erroneous or fraudulent data (such as robust identity verifications or anti-fraud mechanisms). The mere recording of the IP address and email is not sufficient to demonstrate that the claimant expressed their consent to receive commercial communications.

IV

Classification of the infringement committed by sending commercial communications without the necessary legitimacy.

The fact that the defendant sends unsolicited or expressly unauthorized advertising emails to the claimant constitutes a violation of the provisions established in Article 21 of the LSSI, which states the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the

recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of their own company that are similar to those that were initially the subject of the contract with the customer. In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both in the...”

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moment of data collection as in each of the commercial communications directed to you. When the communications have been sent by email, this medium must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

V

Sanction

The aforementioned infringement is classified as "minor" in article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in article 21 are not met and do not constitute a serious infringement.”

According to the provisions of article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

On the other hand, article 40 of the LSSI establishes the criteria for the graduation of the amount of the sanctions:

“The amount of the fines imposed will be graduated according to the following criteria: a) The existence of intent. b) The period of time during which the infringement has been committed. c) The recurrence of committing infringements of the same nature, when this has been declared by a firm resolution. d) The nature and amount of the damages caused. e) The benefits obtained from the infringement. f) The volume of business affected by the committed infringement. g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of article 18 or in the eighth final provision and which has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, it is considered appropriate to graduate the sanction to be imposed in accordance with section c) of the aforementioned article 40 LSSI. In this case, we can cite files PS/161/2021 and PS/425/2021 where the respondent is sanctioned for carrying out commercial communications without having been previously requested or expressly authorized.

According to these criteria, it is deemed appropriate to impose a sanction of €10,000 (ten thousand euros) for the infringement of article 21.1 of the LSSI.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, RESOLVES:

FIRST: TO IMPOSE on the entity, AD735 DATA MEDIA ADVERTISING, S.L. (AD735), with CIF: B87781795, for infringement of article 21 of the LSSI, classified in article 38.4.d) of the aforementioned regulation, a fine of €10,000 (ten thousand euros).

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SECOND: NOTIFY the resolution to AD735 DATA MEDIA ADVERTISING, S.L.

THIRD: Warn the sanctioned party that they must comply with the imposed sanction once this resolution becomes executive, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of

October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account

No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Lorenzo Cotino Hueso,
President of the Spanish Agency for Data Protection.

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